in two weeks such a change as to the fever might take place as would enable us to proceed; and then as much dispatch as possible should be given.

M[r] Murray acquiesces willingly; and will give orders to delay manning his ship: he is equally anxious with us that she should go under convoy. He is going to M[r] Warder's (at Peele Hall) where perhaps you may see him, and converse about the ships bringing back the crews of the armed vessels.

P. S. It will be important to arm M[r] Murray's Ship: I suppose the public could loan some guns, M[r] Murray engaging for their value if lost. Please to confer on this point with him. — —

[SDA. Dom. L, Vol. 11.]

To Secretary of State from Richard O'Brien, U. S. Consul General, Algiers

ALGIERS *October the 12[th] 1798.*

SIR I have to inform you that on the 5[th] Ins[t] was Sent into this port by an Algerine Corsaire of 16 Guns the Brig *Mary*, belonging to Philadelphia Joseph Isreal master, with a valuable Cargo of wines which Cost. in S[t] Lucar. in Spain 18 thousand dollars. Consigned To James Yard Esq[r] of Philadelphia. Said Brig had an American Register &[c] Sea letter, and unfortunately no Meditteranian passport.

"This Vessel haveing no Meditteranian pass. by the Algerine marine Laws and the Custom of this government. with all nations the[y] are at peace with, is that, it is by the meditteranian pass & the Colours that Said Vessel is known by the Barbary States to be A nation the[y] are at peace with. The fatal Consequence of haveing no Meditteranian pass is that the master and Crew is liable to be made Slaves of, and the Vessel and Cargo, declared a legal prize

Richard O' Brien 11 Octr 1798 By Mr Carr

"The latter part of the 4[th] article of the treatie of the United States with Algiers, runs thus, That Eighteen months Shall be the term allow[d] for furnishing the Ships of the United States with passports. As this Vessel Came in Sight I was Very Suspicious, by her appearance, that Said Vessel was an American, and therefore I went to the Marine, and had prepared the Minds of. the necessary persons, in Case I should want theire assistance, and when The Captain of the port returned on Shore after Visiting the Brig & brought on Shore a letter from the prize master, written by the Captain of the corsaire, giveing an account of the manner of his taking Said Vessel and his Motives for Sending her in. This acc[t] or Circumstance was Mentioned in My presence. I told the general of the Marine that before I could Judge relative to this Vessel I must first See her papers, and as the Cap[t] aport must go and make the Report to the Dey, I tryed to Bias him to make it as favourable on my part as possible, as the news Spread &[c] Seemed that the general Cry was a good prize. — On this I requested that the papers of Said Vessel would be brought on Shore. The general Sent Of. for Said papers, and I then found her Register & Sea letter to be American and no Meditteranian pass. The Register being indorsed & haveing allso a Bill of Sale

of Said Brig. with a button Seal. The property transfered by Mr Pintard to Capt Isreal and Robt Stevenson: of Philadelphia. I declard that the bill of Sale was: A Pass. avant and Consular Certificate. This I seen the necessity of to Save the Crew. The Capt aport returned to the marine and told the general it was the dey^s^ orders that Said Crew of Said Brig Should be Sent to the Slave prison, but I declaring that the Pass avant or Consular Certificate was given on account of this Vessel haveing been taken and plundered both by the french and British, and papers deranged, and her detention in Europe — that Said Vessel was proceeding to America to Obtain A Meditteranian pass. and aided in this report by the General, the Capt aport was Sent to the dey at my request and with this Statement &^c^ requested that the Crew Should not be Sent to the Slave prison. The dey permited she Should remain in my Custody untill that. The board of admiralty Should determine on S^d^ Crew — The master Crew and passengers was permited to go to the American house, and the Brig *Mary* left and kept in the posesion of the Algerines. I was fully employed with the Bocries, whose assistance depend has been very great to me on this affaire, as well as on all Occasions relative to the affairs of the U States.

"On the morning of the 6th of October I went to the Marine The general of Marine and the board of Admiralty being met with the general as the president. The[y] Contended that this Vessel haveing no Meditteranian pass, that Vessel and Cargo was a legal prize, that it was Customary for Algiers to act so with all nations, but I declareing s^d^ Vessel to have been taken and her papers plundered & her Pass avant or Consular Certificate and my promises of 2500 Dollars to be divided in the usial way. The[y] declared that this altered the Case and made this report of the pass avant to the Dey, and that the[y] hoped & that it was theire request that the Dey would for once pardon this vessel the American peace being new &^c^ we as yet not fully acquainted with the nature & Consequence of not haveing a good Meditteranian pass — The Capt aport went to the dey and made no favourable report. The Dey desired the admiralty to take Care that the[y] were not Bribed. That this vessel haveing no Meditteranian pass. was a good prize, and that, he Should take a few days to Consider fully on this business. The Capt aport with the owners of the corsaire was of One party against Clearing the Vessel. I, immediatly with those of more powerfull influence dureing this interval I immediatly Commenced my plans against the next decision, and made out a strong Consular Certificate which would back & Strengthen any thing I had Said or Could Say, relative to a pass. avant, this I seen the necessity of — — In order at all events to Save the Crew and passengers, the[re] being 21 — &^c^ Knowing them to be worth at least 42 Thousand dollars, if Condemned The U. S. would have to redeem them & the invoice of the Cargo. I made out anew in the room of Eighteen Thous^d^ I reduced it to 8, and by Miciah Bocries Calculation to the dey it was reduced to 3 Thous^d^ d^lrs^ On the Morning of the 9th of October, the board of admiralty met again when all

the papers was examined into, and other persons Called to read & explain theire Contents, now, when the pass avant and Consular Certificate was read, the[y] declared I had told them the truth and exanined theire books to 150 years back, and in S^{d} Book of Marine laws and Customs on the like Occasions. One leafe Condemns & the other Clears — & the[y] determined the 2^{d} time as the[y] did at first and finally the dey declared Said Vessel a Legal prize, but that, for my acc^{t} and his good Opinion of the U S. he Cleared Said Vessel and Cargo, declareing that he favoured me on this Occasion but Could never again &^{c} — that any Vessel without a pass. would be Condemned, and that no Consular Certificates Should with him or his people be Sufficient to Save either Vessel Or Cargo — and for me to give this information to the United States

I have examined fully our passports, and find them defective in Consequence. I Send you with these dispatches a Spanish Meditteranian pass. which I think much Superior done than. Those of the U S — our passes is too long & broad the great Breadth the more liable to Error, and therefore, the Cut or top which the barbary Corsairs has does not agree with that nicety that is requisite and with the pass. which the Merch^{t} Vessels of the United States has in Consequence it is the Custom here, and all nations at peace with those people has Submited to it. That when the top does not exactly agree with the bottom that the Cargo is Condemnd — and in Consequence of these very visable defects in the present American passports many of our Vessels will be met with and unavoidably theire Cargoes Condemned. This requires remidying immediatly and I Should propose Something Similar to the Spanish pass. on better paper, or on Such parchment as would be thick not liable to Shrink or extend, One part being damp the other part perhaps folded & dry, would Occasion the top not agreeing with the bottom, and in Consequence a due Cargo. government gives both top & bottom & if the[y] do not agree & in Consequence the Merchants Suffer will the[y] not blame theire government, which gave them the pass will the[y] not Sue &^{c} recover damages from the government.

I inclose you an american pass & 2 tops or Cuts to Shew you the defect and I point out the necessity of remedying it. The N° 1 on top and bottom of the American pass being kept Close or on the line. The top is longer then the bottom by 1/10th of an inch and this defect will be the means of Confiscateing many A Cargo if not remedied —

As the french Spanish and British has taken and Condemned & Sold So Many American Vessels the[y] haveing of Course with them theire Meditteranian pass. Of Course many of those Vessels has been resold to other nations & of Course the[y] have many of our passports. Under this pretence we Claim it as a right to Change our passports on this plan which I presume to Suggest to you Sir, takeing 18 Months for all American Vessels to have the new pass. given out, and the Same time, for the Old pass. to be good untill the Vessels has procured the new and as the[y] have the new the[y] need not Carry the Old, the tops of the new passes to Send to Algiers

Tunis & Tripolia So that we might furnish the new passes. and with them the old untill that all American Vessels has got the new passes. which I think the[y] Can have in the run of 18 Months or 2 years, and from what I State and Sugest I hope that I Shall Shortly have youre Ans[r] on these great affairs — which I think will draw youre most Serious attention and prevent many Valuable american Cargoes from being Condemned on account of a deficiency in the pass. many instances of this nature I have known during my Captivity of 10 y[rs] & 41 days.

I would propose a Ship under Sail with her American Ensign aft to her top G[lt] mast heads. The American Flag — the top to Cut by the 1[st] reefe in the main top Sail and to the 3[d] or Close reefe in the fore topsail and by the Close reefe of the Mizen topsail, with a Star on the Close reefed fore topsail a half Moon on the 1[st] reefe of the Main topsail and a Star on the head of the Mizen top Sail, all this to be done, very elegantly, well engraved and Cut with the greatest exactness.

Those Meditteranian passes when Once on this plan we might then expect Safety and those passes Should not be doubled, but rolled up and a tin Canister made to keep it in

this Meditteranian pass.
Sea letter on good paper.
Register on parchment.
Role D[e] Equipage —
& Each Sailor his protection
and Real American Colours.
Crews 2/3[ds] Americans
No fancy flags, enforce the Laws &
on Each of these
documents Should
be Stampt the arms
of the United States
None of y[r] buton Seals
Now. The public Seal
or its Stamp Should
be to all those documents

I shall Observe that the Dey was not Satisfyed that this Brig *Mary* was an American Vessel untill that I compared & Shewn the Public Seal of my Consular Commision which I Convinced the Ministry was the Same, and exactly alike unto the Public Seal on the Brig *Mary*[s] Sea letter and a M[r] Abraham K. Bracher had a Lieut[s] Commision in the New York Militia and the Seal of New York thereto, Signed under the Seal John Jay — This I knew & with persuasion I Could make the Algerines know why because the[y] Could not read English & the Seal had not the Stars or Eagle on it — for if those people Cannot read the Christian print or writeing if the[y] See the Seal of the United States, or the arms thereof the[y] know it, but the[y] Cannot read the writeings, but the Seal is expressive. I presume if I have not fully described, that you very easily perceive what I would wish to explain and point out, and Shall Observe that all persons that Grants Certificates to any persons going to Europe Should have the Seal of the United States, or its arms on the Seal — Supose the port of Norfolk, Collectors Seal, the arms of the U. S. & the requisite writeings on the Seal, I hope that those that might frequent the Meditteranian will have the real American Colours — if the[y] have those State flags, the[y] will not do, with even a good pass.

The Algerines will not belive or know them to be Americans. Why because the[y] have not American Colours & the[y] know nothing about y^r State Colours — The[y] will declare the[y] made a peace with one nation & one flag, not with 16 nations &^c 16 flags — look out. O'Brien will give you true Soundings

[SDA. CL, Algiers, Vol. 3, 1798.]

To Secretary of State from Richard O'Brien, U. S. Consul General, Algiers

ALGIERS. *October the 14th 1798.*

SIR, The Bearer of. these dispatches. is Mr James Carr whom has been with me Since my arrival in the frigate. he haveing untill this date. acted as my Secretary. and finding. the Situation of American affairs with. Algiers Tunis and Tripolia not to be. favourable. Particularly the deficiency of our parses for the Meditteranian to be So. defective which with many Other important affairs. contained in these dispatches. which accompanies this. letter I have prevailed, on the Said James Carr to. proceed in this Said Brig *Mary*. with Captain Isreal. and to make the greatest Speed to Philadelphia and deliver to you these dispatches. which I presume will draw youre most Serious attention. in Consequence I have agreed with this Said James Carr. on the part of the United States to give him at the Rate of 30. dollars per Month. from this date. untill the delivery of These dispatches to you which money I hope will be paid him by the United States.

As to the affairs of the United States with This Regency you will. be able to form. a true Idea. by the purport of the dispatches. depend Sir we shall have war. declared against. us if those expected Corsairs. and stores does not shortly arrive. which is for Algiers. and Tripolia — or that. you. will. heare of my being put in Chains — depend if it was Hassien. Bashaw. the late dey that. he would not. have patience. untill. this time. war would have been the result. of extraordinary. neglect. and. detention. or I should be necessiated. to make the promise of a Corsaire. or Sacraficed a large Sum of Money and presents. — Since I have been in this Country I have had. no one letter from you and all that. has been Communicated To me was in a letter. of The 16th of June last. informing me of an extract. of a letter from you dated the 13th of April. giveing an Account of One Corsaire launched the 2^d^ to be that day & the 3^d^ in. 3 weeks. and that Mr Butlers Ship being freighted. for Algiers. now Sir Say the[y] took at furthest June and July, to fit, and load. to this date. the[y] would have 74 day^s^ to come to Algiers. and in fact. God knows. what detains them.

I have as Much confidence in the dey. and present Ministry. Relative to the United States. as I could ever expect. and belive that if we did not neglect. those people. So Shamefully. as we have done. that our peace was as secure. As if it was Made with Any Nation.

I belive it and shall ever consider it my duty. to write you with Candoure and Truth. My Sentiments. and Ideas you have with these dispatches. and if you. and the United States intends to Keep. youre peace with. The Barbary States. These dispatches Should be attended to.

This summer the Algerines. has been Occupied takeing Greek Vessels which is navigated with the Subjects of the Grand Signior. under pretence. of deficiency^s^ in theire pass. and of. theire navigateing to the West^d^ of Sicilly. and Carrying grain to the french and Spaniards.